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Anti-Bribery & Anti-Corruption Policy

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Anti-Bribery & Corruption

In Arche Global Pvt Ltd Bribery and corruption policies are critical components of ethical business practices, aimed at preventing unethical behaviour that could compromise integrity and fairness in business dealings. Below are key points regarding these policies.

Definitions

Bribery

Bribery includes the offer, promise, giving, demand, or acceptance of an undue advantage as an inducement for an action which is illegal, unethical or a breach of trust. Bribes often involve payments (or promises of payments) but may also include anything of value – providing lavish/inappropriate gifts, hospitality, and entertainment, inside information, or sexual or other favours; offering employment to a relative; underwriting travel expenses; abuse of function; or other significant favours. Bribery includes advantages provided directly, as well as indirectly through an intermediary.

Persons from giving bribes not only to any public/government official but also to any private individual. Bribery in any form will not be tolerated.

Corruption

Corruption includes wrongdoing on the part of an authority, or those in power, through means that are illegitimate, immoral, or incompatible with ethical standards.

Public Official (Government Official or Public Servant) / Foreign Public Official in the Indian context, a public official would include (but not be limited to) the following:

- any person holding a legislative, executive, or administrative office of the government (domestic or foreign) or acting in the official capacity for or on behalf of a legislative, executive, or administrative office of the government (domestic or foreign), whether appointed or elected, whether permanent or temporary, whether paid or unpaid, irrespective of that person's seniority.
- any person in the service or pay of the government or of a corporation established by or under a central, provincial, or state statute, or an authority or a body owned or controlled or aided by the government or a government company or is remunerated by the government by fees or commission for the performance of any public duty.

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- c. any judge, including any person empowered by law to discharge, whether by himself/herself or as a member of any body of persons, any adjudicatory functions.
- d. any person authorized by a court of justice to perform any duty in connection with the administration of justice, including a liquidator, receiver or commissioner appointed by such court.
- e. any person who performs a public duty, including for a public agency or public enterprise, or provides a public service, as defined in the domestic law of the country, and as applied in the pertinent area of law; and
- any other person defined as a "public official" under the domestic law. "State" means all levels and subdivisions of governments (i.e., local, regional, or national and administrative, legislative, or executive).

Foreign public official

Under non-Indian ABAC laws, what constitutes a "foreign official" or "foreign public official" is interpreted broadly and includes officials from all branches of government, as well as public international organizations, regardless of whether the official is a paid or unpaid employee. The term also includes political parties, party officials, and candidates for public office. Further it includes employees or agents of state-owned or state-controlled enterprises and means any person acting in an official capacity on behalf of any government department, agency, instrumentality, or corporation, family members of the official, as well as a political party official or any candidate for political office.

Facilitation payment or kickbacks

"Facilitation Payments" are unofficial payments made to public officials to secure or expedite the performance/ non-performance of a routine or necessary action. They are sometimes referred to as 'speed' money or 'grease' payments or 'good-will money'. The payer of the facilitation payment usually already has a legal or other entitlement to the relevant action. "Kickbacks" are typically payments made in return for a business favour or advantage.

Third party

The term "third party" includes any individual or organization, who/which gets into contact with the Company or transacts with the Company, and also includes actual and potential clients, vendors, consultants, retainers, agents, advisors, distributors, business associates, partners (including academic institutions), contractors, suppliers or service

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providers who work for and on behalf of the company.

Improper performance

Breach of an expectation that a person will act in good faith, impartially or in accordance with a position of trust amounts to improper performance. This would also include obtaining, agreeing to receive, accepting, or attempting to obtain an undue advantage for acts to be performed properly.

What Is Corruption?

a) Corruption can take place in many types of activities. It is usually designed to obtain financial benefits or other personal gain. For example, bribes are intended to influence behaviour – they could be in the form of money, a privilege, an object of value, an advantage, or merely a promise to influence a person in an official or public capacity. Usually, two people are involved, and both would benefit. Examples of a bribe include offering or receiving of cash in the form of a kickback, loan, fee, or reward, or giving of aid, donations, or voting designed to exert improper influence.

b) The areas of business where corruption, including bribery, can most often occur include:
   - Gifts, Entertainment and Hospitality.
   - Facilitation Payments.
   - Procurement Process.
   - Political, Community or Charitable Contributions.
   - Improper Performance of Duties.
   - Favours Regarding Recruitment Opportunities.

c) In the Indian context, the ingredients of an offence by a public servant under the PCA are1:
   - Obtaining, accepting, or attempting to obtain by a public servant of an undue advantage with the intention to perform or cause performance of public duty improperly or dishonestly or forbearing or causing forbearance to perform such duty either by the public servant himself or by another public servant.
   - Obtaining or accepting or attempting to obtain by a public servant of an undue advantage from any person as reward for the improper or dishonest performance of a public duty or for forbearing to perform such duty either by the public servant himself or another public servant.
   - A public servant performing or inducing another public servant to perform improperly or dishonestly a public duty or to forbear performance of such duty in

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anticipation of or in consequence of accepting an undue advantage from any person. Violators of the PCA shall be subject to fines and/or imprisonment. Liability could also be attributed to a company, if any person 'associated' with the company gives a bribe. The PCA and recent judgments of the Supreme Court of India have made it clear that private persons can be prosecuted under the PCA along with public servants for having abetted the offence of bribery. Improper Performance could lead to accusations of criminal breach of trust, which is an offence under the Indian Penal Code (IPC). The IPC also penalizes abetment as an offence.

- Under the IPC any person who intentionally aids, by any act or illegal omission, the doing of a thing, or engages with a person / person or Persons in a conspiracy for the doing of a thing, is guilty of the offence of abetment. Additionally, a person could also be prosecuted for offenses of cheating and/or criminal breach of trust under the IPC. The PCA also penalizes abetment.

Gifts, Entertainment and Hospitality

d) Gifts, entertainment, and hospitality may be acceptable if they are reasonable, proportionate, made in good faith and in compliance with the Company's policies, General Guidelines are mentioned in clause ' h' for giving and receiving gifts and various advisories issued from time to time under the foregoing. Any doubts in this regard should be clarified with the Company Ethics Counsellor or the Compliance Officer.

e) What is a "Gift"? A gift is anything of value and would encompass any gratuitous monetary or non-monetary benefit. It includes tangible items such as cash, precious metals, stones, jewelry, art, and any of their equivalents, but also intangible items such as discounts, services, loans, favours, special privileges, advantages, benefits, and rights that are not available to the public. A "gift" also includes meals, entertainment, hospitality, vacations, trips, use of vacation homes, tickets to sporting or music events, outings, vendor familiarization trips, and use of recreational facilities. Under no circumstances should any Designated Persons ever solicit a gift from any person or company that is doing, or seeks to do, business with the Company. Note that meals, entertainment, and hospitality may also qualify as a gift, unless they fall within reasonable bounds of value and occurrence.

f) Designated Persons must familiarize themselves with our Arche's Gifts & Hospitality guidelines.

g) Offering gifts to win or keep business is unethical and, in many cases, illegal. If you find it difficult to provide a comfortable answer to questions on the appropriateness

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of a gift, or if you are unsure if you should accept something of value, each Designated Person must ask the Compliance Officer. If your Compliance Officer is conflicted, seek guidance from the Designated Director.

h) Note that this ABAC Policy is applicable whether a Designated Person is personally offered a gift, or if a gift is offered for the benefit of a specific group or department at the Company (including as a prize to be distributed at a party or event). All gifts received should be promptly reported to the Compliance Officer if they are not in the ordinary course of business, in compliance with all policies issued by Arche and as per applicable law. Gifts of cash or cash equivalents must never be accepted.

i) A Designated Person may give a modest gift to a government or other public official only when it is appropriate, allowed by local law, and in accordance with Arche's Gifts and Hospitality guidelines.

j) Designated Persons are prohibited from offering gifts or granting favours outside the ordinary course of business to current or prospective customers, their employees or agents or any person (including but not limited to Government Officials) with whom the company or its business associates have a contractual relationship or intend to negotiate an agreement. No Designated Person should accept or solicit any personal benefit from anyone during business in a manner that might compromise or appear to compromise their objective assessment.

k) As a general guide, the giving (out bound) or receiving (inbound) of gifts or hospitality may be acceptable if it meets all the following requirements:

- Is bona-fide and made in the normal course of business and does not create the appearance (or an implied obligation) that the gift giver is entitled to preferential treatment, an award of business, better prices, or improved terms of sale or service.
- Complies with local laws and customs (including cultural and religious festivals) and is not prohibited under applicable law.
- Would not influence, or appear to influence, or cause a conflict of interest for the gift giver or receiver.
- Does not include cash or cash equivalents, gold or other precious metals, gems, or stones.
- Does not include any form of services or non-cash benefits such as promise of employment.
- Disclosure of the same does not cause embarrassment to the giver or receiver or to the company in question.
- Is fully documented and supported by original receipts and accurately recorded in

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the books of accounts.

- Is given openly, not secretly and in a manner that avoids the appearance of impropriety.
- In addition to the above, each Designated Person is required to follow the specific compliance guidelines set out in the Company's Gifts and Hospitality guidelines, including in relation to maximum values permitted.

Facilitation Payments or Kickbacks

l) All Facilitation Payments and kickbacks are corrupt payments, and any such payment during our Company's business is strictly forbidden.

m) Facilitation Payments are often involved in obtaining non-discretionary permits, licenses, or other official documents, expediting lawful customs clearances, obtaining the issuance of entry or exit visas, providing police protection, whether such actions are connected to the award of new business or the continuation of existing business.

Procurement Process

Designated Persons must follow Arche's processes and adhere to the system of internal controls around supplier selection. Supplier selection should never be based on receipt of a gift, hospitality, or payment. When supplier selection is a formal, structured invitation for the supply of products or services (often called a 'tender'), it is most important we maintain documentation supporting our internal controls. Designated Persons must familiarize themselves with Arche's procurement processes and must adhere to the same.

Interaction with Customers

n) Where a Designated Person is responsible for relationships with customers, she/he may entertain customers for bona-fide purposes only in accordance with Arche's Gifts & Hospitality guidelines. Records of such entertainment should be maintained as per our Gifts & Hospitality guidelines.

o) Bribery may also occur on the sales side, for example an employee might accept a bribe to prefer one customer over another, again with potentially damaging consequences for relationships with other customers, as well as the legal consequences to Arche.

p) In the normal course of business, discounts and rebates are offered to customers in both the private and public sectors. While this is common industry practice, the wide

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variety of arrangements and the relative complexity of some of them creates a degree of risk that such arrangements could be used to disguise improper inducements to individual customer representatives (for example, selective dissemination of the fact that free products are being provided), and consequently great care needs to be exercised in the deployment of such arrangements.

Use of Third-Party Agents, Consultants and Other Intermediaries

q) Arche may be held responsible for bribes paid on its behalf by third parties, with severe and often irreparable consequences, even if Arche did not authorize these payments. Therefore, it is critical that we are careful in the selection of agents, that is, those people or companies who act on our behalf. It is also important to note that whether such third party was acting for or on behalf of the Arche will be determined by reference to all the relevant circumstances and not merely by reference to the nature of the relationship between such person and the Company.

r) All dealings with suppliers, agents, contractors, service providers, intermediaries, consultants, and advisors, shall be carried out with the highest standards of integrity and in compliance with all relevant laws and regulations. We expect all our third parties to share our values and our ethical standards.

s) The following should be kept in mind prior to engaging a third party:
   - Appropriate due diligence is conducted and properly documented.
   - Formal commitment (in writing) is sought from the third party to ensure compliance with these standards.
   - Appropriate anti-bribery and anti-corruption provisions are incorporated in the contracts in consultation with Arche's Legal team, including the right to audit, as well as a clause on termination, if the partner/party fails to abide by the anti-bribery and anti-corruption terms.

Government Interaction

t) NCoC 2019 states "We engage with the government and regulators in a constructive manner to promote good governance. We conduct our interactions with them in a manner consistent with our Code ". Doing business with the government is highly regulated and typically follows stricter rules than those in the commercial marketplace. If you work with government officials or a government-owned (or partially owned) company, you have a special duty to know and comply with applicable laws and regulations, adhere to the highest standards of integrity, and

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avoid even the appearance of impropriety. Arche may interact with the government, government officials and government agencies in multiple forms, such as: for seeking statutory or regulatory approvals, as a supplier, as a customer, etc. Designated Persons should always be truthful, accurate, co-operative, and courteous while representing Arche before any government, government officials and government agencies.

u) Arche's employees shall not, unless mandated under applicable law and our Company's Corporate Social Responsibility ("CSR") Policy, offer, or give any company funds or property as donation to any government agency or its representative, directly or through intermediaries. However, in the Indian context for example, donation of Arche's funds or property to the Prime Minister's Relief Fund or donations towards disaster relief may be permitted pursuant to our Arche's CSR Policy. Arche shall comply with government procurement regulations and shall be transparent in all its dealings with government agencies.

Political Community and Charitable Contributions

Arche shall act in accordance with the constitution and governance systems of the countries in which we operate. We do not seek to influence the outcome of public elections, nor to undermine or alter any system of government. We do not support any specific political party or candidate for political office. Our conduct must preclude any activity that could be interpreted as mutual dependence / favour with any political body or person, and we do not offer or give any company funds or property or other resources as donations to any specific political party, candidate, or campaign. Any financial contributions considered by our Board of Directors to strengthen democratic forces through a clean electoral process shall be extended only through the Progressive Electoral Trust in India, or by a similar transparent, duly authorized, nondiscriminatory, and non-discretionary vehicle outside India". Designated Persons are not allowed to make political contributions from the funds, properties, or other resources of Arche except political contributions approved by the Board in accordance with the NCoC and in compliance with applicable law. Arche may make charitable donations for humanitarian needs and other factors, including emergency situations and disaster relief. Such contributions must be made in compliance with our Company's Corporate Social Responsibility Policy. A copy of the same is available on the company Intranet. However, it is important that we pay special attention when making donations such that they shall be made without demand or expectation, so that our donations would not be considered inducements, as this would be a violation of the anti-corruption laws, the NCoC and this ABAC Policy. Thus, contributions by Arche to community projects or charities need to be made in good faith and in compliance with our NCoC, this ABAC Policy and all other relevant policies and procedures.

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v) Before making such a contribution, the Designated Persons should ensure that:
   - Such charitable contributions are not dependent on, nor made to win, a business deal.
   - The contribution is always made to the charity and not to any individual, except where donations or grants are provided directly to affected victims of natural disasters, pursuant to Arche's CSR policy.
   - Contributions should be given to entities where the end use of the contribution is known and/or controlled.
   - Contributions should only be made to charitable organizations which are registered under the laws of the country.
   - As far as possible, background checks on the charitable organizations should be carried out in all cases specially to ensure that the charity does not act as a conduit to fund illegal activities in violation of anti-money laundering laws, anti-terrorism laws and other applicable laws.
   - Only such charitable contributions shall be made that are legal and ethical under local laws and practices.

Sponsorships

Sponsorships are closely allied to the various types of community / business activities undertaken by Arche. These could range from sponsoring educational scholarships to local sports teams. Any sponsorship must be for genuine business or charitable objectives without any element of quid pro quo. Any such sponsorship must be transparent, duly approved, properly documented, and duly reported as per our Company's CSR Policy.

Mergers and Acquisitions

w) A company that does not perform adequate due diligence regarding compliance with anti-bribery and anti-corruption procedures of the target company prior to a merger or acquisition may face both legal and business risks. Arche will undertake appropriate and reasonable due diligence on the reputation and integrity of any business in which it makes investments.

x) Arche, when it is acquiring a potential target, will train new employees, re-evaluate third parties under company standards and where appropriate, conduct audits on new business units.

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Conflicts of Interest

NCoC 2022 provides detailed guidance on assessment of potential situations of conflict of interest. Any conflict of interest, even if it is perceived or potential, reported to the Company Ethics Counsellor or the Compliance Officer, must be in turn reported to the appropriate competent authority as defined in NCoC 2022, and actioned as per the guidance provided in the NCoC.

Books, Records, and Internal Control Requirements

y) Accurate and complete recordkeeping is essential to the successful operation of our Company, as well as to our ability to meet our legal and regulatory obligations. Each Designated Person has a responsibility to be accurate, complete, and honest in what he/she reports and records to meet regulatory requirements, as well as in all internal and external documents of Arche, including accounting records, timecards, expense reports, invoices, payroll records, safety records, business records, performance evaluations, etc.

z) Expenses must never be hidden or purposefully misclassified. Many serious global briberies and corruption scenarios are found to involve inaccurate record-keeping. To prevent this, international anti-corruption laws generally require detailed and accurate accounting records for transactions, including cash and bank accounts. All Designated Persons must ensure that we maintain accurate books, records, and financial reporting.

aa) All business units and entities must maintain an effective system of internal control and monitoring of our transactions. Certain monitoring controls are identified in our policies, specifically regarding approval of travel and entertainment expenses. It is the responsibility of the Designated Persons to be knowledgeable about control procedures and ensure compliance. Designated Persons are required to ensure that all expense claims relating to hospitality, gifts or charitable donations are submitted in accordance with applicable policies and specifically record the reason for the expenditure.

bb) Designated Persons are required to maintain all financial records and have appropriate internal controls in place which will evidence the business reason for making payments to or receiving payments from third parties.

cc) All accounts, invoices, memoranda and other documents and records relating to dealings with third parties, such as customers, suppliers, and business contacts,

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should be prepared and maintained with accuracy and completeness. Our records management and retention policies ensure that we maintain the records we need to meet our legal, tax and regulatory requirements and securely dispose of records that

dd) are no longer needed or are beyond the statutory retention period. Designated Persons should take care never to dispose of information that may be relevant to current or threatened litigation or subject to a legal prohibition or stipulation until they are authorized in writing to do so by the relevant department.

ee) Designated Persons who see or suspect financial misconduct should notify their supervisors immediately and contact the Compliance Officer.

Communication and Compliance Training

ff) It is our commitment to ensure that Arche has adequate procedures to combat ABAC risks and threats. To meet this objective, regular training will be made available to all business units in relation to our ABAC Policy, obligations of Designated Persons, company procedures and measures. The details of Arche's whistleblowing procedures will be disseminated throughout Arche's and will be done on a regular basis.

gg) Training will be conducted either on-line or in-person or a combination of both and will be administered by the Compliance Officer. The training will be required to be completed within a specified timeframe. The Designated Persons must not treat these training programs as a 'onetime' event and Designated Persons are expected to keep themselves up to date by undergoing repeat training at regular intervals or each time a training program is updated.

hh) Arche may also extend training programs to third parties, if it is envisaged that the work profile allocated to them carries a significant risk as per this ABAC Policy.

ii) It is the responsibility of all to understand and comply with policy and follow reporting requirement set out in policy.

jj) Arche is responsible for ensuring awareness at all levels and functions at its offices.

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How to Report Concerns

To report a concern regarding bribery or corruption, Arche Global employees should:

- **Contact the Compliance Officer**: Reach out to the designated compliance officer for guidance and to report any suspicious activities.
- **Document Evidence**: If possible, gather and document evidence related to the concern to support any claims made during the reporting process.
- **Compliance Officer:** manoharan.t@arche.global & 7045756931

Responsibility and Penalties

kk) Arche takes the subject of corruption and bribery very seriously. Any violation of this ABAC Policy will be regarded as a serious matter and shall result in disciplinary action, including termination, consistent with applicable law and the employee's terms of employment.

ll) Bribery is a criminal offense. The defaulting Designated Person will be accountable whether she/he pays a bribe herself/himself or authorizes, assists, or conspires with someone else to violate this ABAC Policy or an anti-corruption/anti-bribery law. Punishments for violating the law are against a defaulting Designated Person as an individual and may include imprisonment, probation, and significant monetary fines which will not be paid by the Company. For example, punishment under the PCA ranges between 3 years and 7 years, along with a fine. In certain cases of habitual offenders' imprisonment could be as high as 10 years. There is no limit on the maximum fine payable.

In case of violations of this ABAC policy, the Compliance Officer shall take appropriate steps such as:

- Assigning an Investigation Team / committee: Employees with the right knowledge and objectivity is appointed to investigate a complaint.
- Conducting an Investigation: Every investigation relating to a suspected violation of this ABAC Policy shall be investigated by the Compliance Officer. The objective of such an investigation would be to determine the facts, through interviews with concerned participants and/or review of documents. Such investigation team will make a written demand for information, records etc. that is reasonably related to the alleged offence, including, without limitation: copies or access to all

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records relating to the alleged offence (such as telephone records, Internet service records and/or other records stored on computer hard drives or other information storage equipment); and/or a written statement made by the Designated Person, if any, setting out in detail all of the facts and circumstances of which such a Designated Person is aware with respect to the alleged offence. Each Designated Person shall co-operate with the investigation team and promptly respond to all requests for information. It is clarified that the report prepared by the investigations team, shall be kept confidential and shall be shared only with such persons who have a

"need to know" under applicable law or Company Policies, e.g., a copy of the report may be shared with the Designated Director.

- Corrective Action: If necessary, corrective actions shall be prescribed or suggested to appropriate managers, officers, and employees for implementation.
- Penalties: The Compliance Officer shall, after considering inputs, if any, from the Company Ethics Counsellor and the Designated Director have the discretion to recommend appropriate disciplinary action, including suspension and termination of service of such a defaulting Designated Person. The Compliance Officer shall also recommend if the violation is potentially criminal in nature and should be notified to the authorities. In the event of criminal or regulatory proceedings, the Designated Persons shall co-operate with relevant authorities. Depending on the nature and scale of default by the defaulting Designated Person, the Compliance Officer may also recommend to the Board to commence civil and/or criminal proceedings against such a Designated Person to enforce remedies available to our Company under applicable laws.
- All internal investigations shall follow principles of natural justice and shall ensure that the relevant Designated Person is provided with an opportunity to make his/her case before the investigation team.

Periodic Review and Evaluation

Arche's Audit Committee will monitor the effectiveness and review the implementation of this ABAC Policy, considering its suitability, adequacy, and effectiveness.
Arche's reserves the right to vary and/or amend the terms of this ABAC Policy from time to time.

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